



SPONSOR: Rep. Morrison & Sen. Sturgeon
Reps. Burns, Gorman, Snyder-Hall, Harris, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 36

AN ACT TO AMEND TITLE 2, TITLE 6, TITLE 9, TITLE 10, TITLE 14, TITLE 19, TITLE 20, TITLE 24, TITLE 25,
AND TITLE 29 OF THE DELAWARE CODE RELATING TO DISCRIMINATION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1917, Title 2 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 1917. No discrimination; accessibility.

(a) The TNC shall adopt a policy of nondiscrimination on the basis of destination, race, color, national origin,
religious belief or affiliation, sex, disability, age, sexual orientation, ~~or gender identity~~ identity, or any other basis protected
under Chapter 45 of Title 6 with respect to riders and potential riders and notify TNC drivers of such policy.

(b) TNC drivers shall comply with all applicable laws regarding nondiscrimination against riders or potential
riders on the basis of destination, race, color, national origin, religious belief or affiliation, sex, disability, age, sexual
orientation, ~~or gender identity~~ identity, or any other basis protected under Chapter 45 of Title 6.

Section 2. Amend § 4502, Title 6 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 4502. Definitions.

For purposes of this chapter:

(19)a. “Place of public accommodation” means ~~any~~ all of the following:

1. An establishment which that caters to or offers goods, services, facilities, privileges, advantages,
or accommodations to, or solicits patronage from, the general public, including state agencies, local agencies
government agencies, public libraries, and state-funded agencies performing public functions. ~~This definition~~
~~includes hotels~~

2. Hotels and motels catering to the transient public, ~~but it~~ public.

3. Entities and services licensed or regulated under Title 5.

b. “Place of public accommodation” does not apply to any of the following: ~~the~~

22 1. The sale or rental of houses, housing units, apartments, rooming houses, or other dwellings, not to
23 tourist dwellings.

24 2. Tourist homes with less than 10 rental units catering to the transient public.

25 Section 3. Amend § 4601, Title 6 of the Delaware Code by making deletions as shown by strike through and
26 insertions as shown by underline as follows:

27 § 4601. Declaration of purpose and construction.

28 (a) *Purpose.* — This chapter is intended to eliminate, as to housing offered to the public for sale, rent or exchange,
29 discrimination based upon race, color, national origin, religion, creed, sex, marital status, familial status, source of income,
30 age, sexual orientation, gender identity, disability, or housing status and to provide an administrative procedure through
31 which disputes concerning the same may effectively and expeditiously be resolved with fairness and due process for all
32 parties concerned.

33 Section 4. Amend § 1183, Title 9 of the Delaware Code by making deletions as shown by strike through and
34 insertions as shown by underline as follows:

35 § 1183. Prohibitions and penalties.

36 (a) The following prohibitions apply:

37 (1) A person may not be appointed to, or removed from, or in any way favored or discriminated against with
38 respect to, any county position, or appointive county administrative office, because of race, or color, or national origin,
39 political or religious opinions or affiliations, sex, sexual orientation, ~~or gender identity.~~ identity, or any other basis
40 protected under Chapter 7 of Title 19.

41 Section 5. Amend § 8110, Title 9 of the Delaware Code by making deletions as shown by strike through and
42 insertions as shown by underline as follows:

43 § 8110. Civic organizations owning parkland.

44 (a) As used in this section:

45 (2) The term “parkland” ~~shall be defined as~~ means real property, including improvements erected thereon and
46 fixtures attached thereto, used primarily for recreational purposes and dedicated as parkland, public open space, private
47 open space or other public use on a recorded subdivision plan, or through valid and binding restrictive covenants,
48 provided that:

49 c. The use of the property is open, without charge, to the public, or to members of the civic organization,
50 or to the residents of the neighborhood, or to residents of the community or to residents of the subdivision in which

the property is located, regardless of sex, race, creed, ~~color or~~ color, national ~~origin~~ origin, or any other basis protected under Chapter 45 of Title 6.

Section 6. Amend § 9605, Title 9 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 9605. Recordation of instruments.

(b)(1) A recorder may not knowingly record or receive for filing any contract, mortgage, lease, deed or conveyance, or any other indenture or agreement affecting real property that contains any promise, covenant, or restriction that limits, restrains, prohibits, or otherwise provides against the sale, gift, transfer, assignment, conveyance, ownership, lease, rental, use, or occupancy of real property to or by any person because of race, color, creed, religion, sex, sexual orientation, gender identity, disability, age, marital status, familial status, source of income, national origin, ancestry, ~~or housing status~~ status, or any other basis protected under Chapter 46 of Title 6. For purposes of this paragraph (b)(1):

Section 7. Amend § 4502, Title 10 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 4502. Prohibition of discrimination.

No person ~~shall~~ may be excluded from jury service in this State on account of race, color, religion, sex, national origin ~~or economic status~~ status, or any other basis protected under Chapter 45 of Title 6.

Section 8. Amend § 8516, Title 14 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 8516. Grounds for refusal to issue, renew or for revoking certificates or permits.

In addition to any other cause herein set forth, the Department may refuse to issue or to renew, or may revoke any certificate of approval or permit for any 1 or ~~combination~~ more of the following causes:

(11) Refusal to admit applicants solely on account of race, color, creed, ~~age or sex~~ age, sex, or any other basis protected under Chapter 45 of Title 6.

Section 9. Amend § 204, Title 19 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 204. Training and apprenticeship programs.

(g) The recruitment, selection, and training of apprentice trainees during their apprenticeship shall be without discrimination because of race, color, religion, national origin, sex, ~~or housing status~~ status, or any other basis protected under Chapter 7 of this title. The State will take affirmative action to provide equal opportunity in apprenticeship programs

and will operate the training program as required under the State plan for equal employment in apprenticeship and training.

For purposes of this subsection:

Section 10. Amend § 1204, Title 20 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1204. Eligibility for burial.

(c) Burial in the Delaware Veterans Memorial Cemetery shall be without regard to race, creed, color, ~~sex or~~ sex, national ~~origin~~, origin, or any other basis protected under Chapter 45 of Title 6.

Section 11. Amend § 506, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 506. Powers and duties; immunity.

(c) ~~No~~ A member of the Board ~~shall in any manner whatsoever~~ may not discriminate against any applicant or person holding or applying for a certificate to practice podiatric medicine by reason of sex, race, color, creed, national origin, ~~or housing status~~, status, or any other basis protected under Chapter 45 of Title 6.

Section 12. Amend § 706, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 706. Powers and duties; immunity.

(d) ~~No~~ A member of the Board ~~shall in any manner whatsoever~~ may not discriminate against any applicant or person holding or applying for a license to practice chiropractic by reason of sex, race, color, creed, national origin, ~~or housing status~~, status, or any other basis protected under Chapter 45 of Title 6.

Section 13. Amend § 1713, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1712. Powers and duties of the Board.

(c) A member of the Board may not discriminate, by reason of gender, race, color, creed, religion, age, disability, national origin, ~~or housing status~~ status, or any other basis protected under Chapter 45 of Title 6, against a person holding or applying for a certificate to practice medicine, or for an authorizing document to practice another occupation or profession pursuant to this chapter.

Section 14. Amend § 3102, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3102. Board of Funeral Services.

(k) ~~No~~ A member of the Board ~~shall in any manner whatsoever~~ may not discriminate against any applicant or person holding or applying for a license to practice funeral services by reason of sex, race, color, age, creed, national origin, ~~or housing status.~~ status, or any other basis protected under Chapter 45 of Title 6.

Section 15. Amend § 5116, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5116. Fair housing provisions.

(a) No person, being an owner or agent of any real estate, house, apartment or other premises, ~~shall~~ may refuse or decline to rent, subrent, sublease, ~~assign~~ assign, or cancel any existing rental agreement to or of any tenant or any person by reason of race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, age, source of income, occupation, housing ~~status or because the tenant or person has a child or children in the family.~~ status, familial status, or any other basis protected under Chapter 46 of Title 6.

(b) No person ~~shall~~ may demand or receive a greater sum as rent for the use and occupancy of any premises because the person renting or desiring to rent the premises is of a particular race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, age, source of income, occupation, housing ~~status or has a child or children in the family.~~ status, familial status, or any other basis protected under Chapter 46 of Title 6.

(c) In the event of discrimination under this section, the tenant may recover damages sustained as a result of the landlord's action, ~~including, but not limited to,~~ including reasonable expenditures necessary to obtain adequate substitute housing.

(d)(1) Notwithstanding subsection (a) of this section relating to age discrimination, and consistent with the federal Fair Housing Act and ~~state fair housing acts,~~ the Delaware Fair Housing Act, Chapter 46 of Title 6, a landlord may make rental units available exclusively for rental by senior citizens.

(2) A senior citizen rental unit ~~shall~~ under paragraph (d)(1) of this section must otherwise be available for rent solely to senior citizens, without regard to race, creed, religion, marital status, color, sex, sexual orientation, gender identity, national origin, disability, source of income, occupation, ~~or housing status of the senior citizen and without regard to whether or not the senior citizen has a dependent child or children in the residence.~~ status, familial status, or any other basis protected under Chapter 46 of Title 6.

Section 16. Amend § 7102, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 7102. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning: For purposes of this chapter:

(2) “Comparable housing” shall mean a dwelling place or manufactured home community site which ~~is~~ is all of the following:

a. Decent, safe, ~~sanitary~~ sanitary, and in compliance with all local and state housing codes;

b. Open to all persons regardless of race, creed, national origin, ancestry, marital ~~status or sex~~; status, sex, or any other basis protected under Chapter 46 of Title 6;

Section 17. Amend § 5953, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 5953. Discrimination prohibited.

(b) A person may not be appointed or promoted to, or demoted or dismissed from, any position in the classified service, or be in any way favored or discriminated against with respect to employment in the classified service, because of political or religious opinions or affiliations, sexual orientation, gender identity, sex, race, ~~or housing status~~; status, or any other basis protected under Chapter 7 of Title 19.

Section 18. Amend § 6962, Title 29 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 6962. Large public works contract procedures.

(d) *Bid specifications and plans requirements.* —

(7) *Equality of employment opportunity and equal pay on public works.* —

a. As a condition of the awarding of any contract for public works financed in whole or in part by state appropriation, such contracts shall include the following provisions:

During the performance of this contract, the contractor agrees as follows:

1.A. The contractor will not discriminate against any employee or applicant for employment because of race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing status~~; status, or any other basis protected under Chapter 7 of Title 19.

B. The contractor will take positive steps to ensure that applicants are employed and that employees are treated during employment without regard to their race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing status~~. ~~Such action shall include, but not be limited to, the following: employment, upgrading, demotion~~ status or any other basis protected under Chapter 7 of Title 19, in all of the following actions:

I. Employment.

II. Upgrading.

III. Demotion or transfer; recruitment transfer.

IV. Recruitment or recruitment advertising; layoff advertising.

V. Layoff or termination; rates termination.

VI. Rates of pay or other forms of compensation; and selection compensation.

VII. Selection for training, including apprenticeship.

C. The contractor agrees to post in conspicuous places available to employees and applicants for employment notices to be provided by the contracting agency setting forth ~~this~~ the nondiscrimination ~~clause.~~ requirements under paragraphs (d)(7)a.1.A through (d)(7)a.1.B of this section.

2. The contractor will, in all solicitations or advertisements for employees placed by or on behalf of the contractor, state that all qualified applicants will receive consideration for employment without regard to race, creed, color, sex, sexual orientation, gender identity, national origin, ~~or housing status.~~ status, or any other basis protected under Chapter 7 of Title 19.

SYNOPSIS

This Act aligns Delaware's non-discrimination laws. Delaware has several broad laws that prohibit discrimination in public accommodations, housing, employment, and insurance but also has many narrow non-discrimination laws that apply to a specific entity, or type of entity, even though a broad law also prohibits discrimination by that entity. This Act aligns the narrower non-discrimination laws with the applicable broad non-discrimination law by also prohibiting discrimination on any other basis protected under the applicable broad law. Adding the reference to the chapter for the applicable broad law includes all protected classes, definitions, and actions that are currently protected under the broad law or that are added to the broad law in the future.

This Act does not make any substantive changes to current non-discrimination laws but is necessary because most of the narrow laws do not contain all of the same protected classes as the broad law that also applies or do not include the definitions of classes that are also in the broad law. These inconsistencies could lead to a misunderstanding by someone reading only an incomplete narrow law, and eventually litigation, about what constitutes illegal discrimination by an entity covered by both the narrow and broad laws. For example:

- The non-discrimination provision for the Board of Podiatry under § 506(c) of Title 24 does not prohibit discrimination on the basis of the following classes, for which discrimination is prohibited under Chapter 45 of Title 6: age, marital status, religion, sexual orientation, gender identity, or disability.

- Only 4 of the 42 chapters in Title 24 establishing professional licensing boards contain a non-discrimination provision, but this does not mean that the other 38 licensing boards are free to discriminate. Aligning these 4 non-discrimination provisions with Chapter 45 of Title 6 clarifies that Chapter 45 of Title 6 also applies to the 38 professional boards that do not have specific non-discrimination provisions.

- For merit system state employees, § 5953 of Title 29 only prohibits discrimination based on race, religion, sex, sexual orientation, gender identity, and housing status but in addition to these classes, § 711 of Title 19 prohibits any employer in this State, including the State, from discriminating in employment based on age, marital status, color, national origin, or disability.

- Most of the narrower non-discrimination laws do not include all of the definitions in the applicable broad law. Adding the reference to the applicable broad law incorporates those definitions into the narrower law. For example:

1. All of Delaware's non-discrimination laws prohibit discrimination based on race and all of the broad non-discrimination laws define "race" as including traits historically associated with race, including hair texture and protective hairstyle. However, very few of the narrower non-discrimination laws include this definition of "race".

2. Several narrow non-discrimination laws prohibit discrimination on the basis of sexual orientation and gender identity but do not include or specifically reference the definitions of “sexual orientation” or “gender identity” in the applicable broad non-discrimination law.

Specifically, this Act revises the following narrow non-discrimination laws to align with the applicable broad non-discrimination law, as follows:

To align with the Delaware Equal Accommodations Law, Chapter 45 of Title 6, which prohibits discrimination on the basis of race, age, marital status, creed, religion, color, sex, disability, sexual orientation, gender identity, or national origin by establishments that offer goods, services, facilities, privileges, advantages, or accommodations to the general public, including government agencies:

- Transportation networks, § 1917 of Title 2.
- Parkland owned by civic associations, § 8110 of Title 9.
- Jury service, § 4502 of Title 10.
- Private business and trade schools, § 8516 of Title 14.
- Delaware Veterans Memorial Cemetery, § 1204 of Title 20.
- Board of Podiatry, § 506 of Title 24.
- Board of Chiropractic, § 706 of Title 24.
- The Board of Medical Licensure & Discipline, § 1713 of Title 24.
- Board of Funeral Services, § 3102 of Title 24.

To align with the Delaware Fair Housing Act, Chapter 46 of Title 6, which prohibits discrimination on the basis of race, color, national origin, religion, creed, sex, marital status, familial status, source of income, age, sexual orientation, gender identity, disability, or housing status in housing offered for sale, rent, or exchange:

- Section 4601 of Title 6, because gender identity is missing from the list of classes protected in the purpose section of Chapter 46 even though gender identity is protected under all of the substantive provisions under that chapter.
- Recording of deeds, § 9605 of Title 9.
- Residential Landlord-Tenant Code, § 5116 of Title 25. To align with Chapter 46 of Title 6, Subsections (a), (b), and (d) are revised to use the term "familial status" because "familial status" is defined in the Delaware Fair Housing Act to mean a household with children.
- The definition of “comparable housing” in § 7102 of Title 25 for the conversion of manufactured home communities.

To align with the unlawful employment practices in employment under Chapter 7 of Title 19, which prohibits discrimination in employment on the basis of race, marital status, genetic information, color, age, religion, sex including pregnancy, sexual orientation, gender identity, national origin, housing status, disability, status as a victim of domestic violence, a sexual offense, or stalking, or a reproductive health decision:

- New Castle County government, § 1183 of Title 9.
- Training and apprenticeship programs, § 204 of Title 19.
- Merit System of Personnel Administration, § 5953 of Title 29.
- Large public works contracts, § 6962 of Title 29.

This Act also clarifies that the definition of “place of public accommodation” in § 4502(19) of Title 6 includes entities and services licensed or regulated under Title 5, Banking.

This Act does not make any changes to Title 18 for insurance.

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual.